

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000138-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Anton L. Smith

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CASE INFORMATION

<u>Judge Assigned:</u> Yu, Kay	<u>Date Filed:</u> 01/08/2024	<u>Initiation Date:</u> 01/08/2024
<u>OTN:</u> U 218066-2	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0023393-2020
<u>Initial Issuing Authority:</u> David C. Shuter	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Rivera, Arturo	
<u>Complaint/Citation No.:</u> 2014072929-0023393	<u>Incident Number:</u> 2014072929	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0023393-2020	
District Control Number	2014072929	
Originating Document Number	2014072929-0023393	

STATUS INFORMATION

<u>Case Status:</u>	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u>
Closed	05/19/2026	Awaiting Violation of Probation Hearing	12/05/2020
	03/25/2026	Awaiting PSI	
	03/25/2026	Awaiting Sentencing	
	03/10/2026	Awaiting Violation of Probation Hearing	
	01/09/2026	VOP/Continued to Further Notice	
	12/31/2025	Awaiting Violation of Probation Hearing	
	10/03/2025	Completed	
	07/18/2025	Awaiting Violation of Probation/Status	
	01/24/2025	Completed	
	11/21/2024	Awaiting Violation of Probation Hearing	
	11/07/2024	VOP/Continued to Further Notice	
	07/15/2024	Awaiting Violation of Probation/Status	
	07/15/2024	Sentenced/Penalty Imposed	
	07/15/2024	Awaiting Sentencing	
	04/05/2024	Awaiting Trial Readiness Conference	
	01/10/2024	Awaiting Scheduling Conference	
	01/08/2024	Awaiting Filing of Information	

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	01/19/2024	11:00 am	1104	Trial Commissioner Dana Murray	Scheduled
Scheduling Conference	02/07/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Scheduling Conference	02/26/2024	9:00 am	1008	Judge Anthony Kyriakakis	Continued
Scheduling Conference	04/05/2024	9:00 am	1008	Judge Anthony Kyriakakis	Scheduled
Trial Readiness Conference	05/31/2024	9:00 am	1008	Judge Anthony Kyriakakis	Cancelled
Waiver Trial	06/03/2024	9:00 am	1008	Judge Anthony Kyriakakis	Cancelled
ARC Status	07/15/2024	9:00 am	704	Judge Kay Yu	Scheduled
Violation of Probation/Status	08/21/2024	9:00 am	704	Judge Kay Yu	Continued
Violation of Probation/Status	09/23/2024	9:00 am	704	Judge Kay Yu	Continued
Violation of Probation/Status	11/06/2024	9:00 am	704	Judge Kay Yu	Continued
Violation of Probation/Status	11/07/2024	9:00 am	704	Judge Kay Yu	Moved
Violation of Probation/Status	11/07/2024	9:00 am	502	Judge Kay Yu	Scheduled
Gagnon I Hearing	11/20/2024	10:00 am	1004	Senior Judge Leon Tucker	Scheduled
NSJ Hearing	11/27/2024	9:00 am	505	Judge Frank Palumbo	Cancelled
Violation of Probation	11/27/2024	9:00 am	502	Judge Kay Yu	Continued
Violation of Probation	01/24/2025	1:00 pm	502	Judge Kay Yu	Scheduled
Add-On/Drug Rehabilitation	06/13/2025	9:00 am	Sheriff Cellroom		Scheduled
Violation of Probation	06/30/2025	11:00 am	702	Judge Michele Hangley	Scheduled
Gagnon II Hearing	07/18/2025	9:00 am	702	Judge Michele Hangley	Scheduled
Gagnon I Hearing	07/18/2025	9:00 am	702	Judge Michele Hangley	Scheduled
Add-On/Psychiatric Evaluation	08/04/2025	11:00 am	Mental Health Clinic		Scheduled
Violation of Probation/Status	08/25/2025	9:00 am	702	Judge Michele Hangley	Continued

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Violation of Probation/Status	08/25/2025	11:00 am	702	Judge Michele Hangley	Continued
Violation of Probation	09/05/2025	1:00 pm	501	Judge Kay Yu	Continued
Violation of Probation/Status	09/29/2025	9:00 am	702	Judge Michele Hangley	Cancelled
Violation of Probation	10/03/2025	1:00 pm	501	Judge Kay Yu	Continued
Violation of Probation	11/21/2025	1:00 pm	1105	Judge Kay Yu	Scheduled
Gagnon I Hearing	12/31/2025	10:00 am	1004	Trial Commissioner Joell Acavino	Scheduled
Violation of Probation	01/09/2026	1:00 pm	1105	Judge Kay Yu	Scheduled
Violation of Probation	03/18/2026	9:00 am	1107	Judge Rose DeFino-Nastasi	Continued
NSJ Hearing	03/19/2026	9:00 am	505	Judge Frank Palumbo	Cancelled
Violation of Probation	03/25/2026	9:00 am	1107	Judge Rose DeFino-Nastasi	Scheduled
Sentencing	05/15/2026	1:00 pm	501	Judge Kay Yu	Scheduled
Violation of Probation	06/09/2026	1:00 pm	200	Judge Kay Yu	Scheduled

CONFINEMENT INFORMATION

<u>Confinement</u>	<u>Confinement</u>	<u>Destination</u>	<u>Confinement</u>	<u>Still in</u>
<u>Known As Of</u>	<u>Type</u>	<u>Location</u>	<u>Reason</u>	<u>Custody</u>
12/23/2025	County Correctional Facility	Detention Center		Yes

DEFENDANT INFORMATION

Date Of Birth: 09/15/1978 City/State/Zip: Philadelphia, PA 19139

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Smith, Anton L.
Probation Officer	Vincent, Deedra
Probation Officer	Fanning, Madison
Probation Officer	Maxwell, Dana

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BAIL INFORMATION

Smith, Anton L.

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	12/04/2023	Monetary	Municipal Court	10.00%	\$25,000.00
Set	01/08/2024	Monetary	Common Pleas	10.00%	\$100,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
2	2	F2	18 § 3503 §§ A1II	Crim Tres-Break Into Structure	12/03/2020	U 218066-2
5	6	F1	18 § 2702 §§ A1	Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	12/03/2020	U 218066-2

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	01/05/2024	Not Final
2 / Crim Tres-Break Into Structure	Held for Court	F2 18 § 3503 §§ A1II
5 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Held for Court	F1 18 § 2702 §§ A1

Proceed to Court Defendant Was Not Present

Information Filed	01/24/2024	Not Final
2 / Crim Tres-Break Into Structure	Proceed to Court	F2 18 § 3503 §§ A1II
5 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference	Proceed to Court	F1 18 § 2702 §§ A1

Guilty Plea - Negotiated

ARC Status	07/15/2024	Final Disposition
2 / Crim Tres-Break Into Structure	Guilty Plea - Negotiated	F2 18 § 3503 §§ A1II
Yu, Kay	07/15/2024	
Probation	Max of 2.00 Years	
	2 years	
Yu, Kay	01/24/2025	
Probation	Max of 2.00 Years	
	2 years	
Defendant referred to New Leash on Life.		
Yu, Kay	10/03/2025	
Probation	Max of 2.00 Years	
	2 years	

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DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Sequence/Description

Sentencing Judge

Sentence/Diversion Program Type

Sentence Conditions

5 / Aggravated Assault - Attempts to cause SBI or causes injury with extreme indifference

Yu, Kay

Confinement

Disposition Date

Offense Disposition

Sentence Date

Incarceration/Diversionary Period

Guilty Plea - Negotiated

07/15/2024

Min of 11.00 Months 15.00 Days

Max of 23.00 Months

11 1/2 - 23 months

Final Disposition

Grade

Section

Credit For Time Served

Start Date

F1

18 § 2702 §§ A1

07/15/2024

Credit to be calculated by the Phila. Prison System

Defendant paroled immediately.

You must NOT possess firearms (including replica guns) or any other deadly weapons, possess, use, sell or distribute controlled substances of any kind.

You are not permitted to leave Philadelphia without approval of your Probation/Parole Officer (Additional travel requirements apply to Megan's Law)

You must report to your Probation/Parole Officer as directed and permit your Officer to visit you at your home of place of employment.

Seek and maintain employment and obey all criminal laws and city ordinances.

Notify your Officer within 72 hours of any new arrest, change of address or change in employment.

You may be ordered to pay supervision fees, undergo a personal search and/or property search, attend a Life Skills Training Course and submit to a DNA sample if convicted of certain offenses.

Costs, Fines and Supervision Fees waived.

Status of Compliance: 8/21/2024

This sentence is to run concurrent with CP-51-CR-8594-2023

Yu, Kay

Confinement

01/24/2025

Balance of Backtime

Yu, Kay

Confinement

10/03/2025

Balance of Backtime

Defendant paroled immediately.

Credit for time served.

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LINKED SENTENCES:

Link 3

- Link 2 is Consecutive to
- Link 1

Link 1

CP-51-CR-0000138-2024 - Seq. No. 5 (18 § 2702 §§ A1) - Confinement is Concurrent with
CP-51-CR-0008594-2023 - Seq. No. 4 (18 § 2702 §§ A3) - Confinement

Link 2

CP-51-CR-0000138-2024 - Seq. No. 2 (18 § 3503 §§ A1II) - Probation is Concurrent with
CP-51-CR-0008594-2023 - Seq. No. 4 (18 § 2702 §§ A3) - Probation

COMMONWEALTH INFORMATION

Name:

Supreme Court No:

ATTORNEY INFORMATION

Name:

Defender Association of
Philadelphia
Public Defender

Supreme Court No:

Rep. Status:

Active

Phone Number(s):

Address:

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	01/08/2024		Court of Common Pleas - Philadelphia County
Held for Court			
3	01/08/2024		Shuter, David C.
Bail Set - Smith, Anton L.			
1	01/11/2024		Defender Association of Philadelphia
Motion to Quash			
1	01/24/2024		Krasner, Larry
Information Filed			
1	01/25/2024		Defender Association of Philadelphia
Motion for Discovery			
1	01/26/2024		Defender Association of Philadelphia
Omnibus Pre-Trial Motion			

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4	02/07/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	02/08/2024		Shaffer, Zachary C.
Pre-Trial Conference Held			
1	02/26/2024		Kyriakakis, Anthony
Defense Request For Continuance Pending Program			
1	04/05/2024		Kyriakakis, Anthony
Scheduling Conference Held			
1	05/31/2024		Kyriakakis, Anthony
Defense Request For Continuance 701 Consolidation			
1	07/15/2024		Yu, Kay
Guilty Plea - Negotiated			
2	07/15/2024		Yu, Kay
Order - Sentence/Penalty Imposed			
6	07/15/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	07/15/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
8	07/15/2024		Court of Common Pleas - Philadelphia County
Release of Prisoner Philadelphia Department of Prisons 07/15/2024			
1	08/12/2024		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			

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1	08/21/2024		Yu, Kay
Defense Request For Continuance Defendant Unavailable/Attorney Accepts Service			
1	09/16/2024		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	09/23/2024		Yu, Kay
VOP Continued To Date Certain			
5	09/23/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	10/28/2024		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
3	10/31/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	10/31/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	11/07/2024		Yu, Kay
VOP Continued Until Further Notice			
2	11/07/2024		Yu, Kay
Order Denying Motion for Reconsideration			
3	11/07/2024		Yu, Kay
Order Denying Motion for Reconsideration			
2	11/15/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			

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1	11/18/2024		Philadelphia County Adult Probation Unit
Gagnon 1 Summary Filed			
2	11/20/2024		Tucker, Leon
Detainer Issued			
3	11/20/2024		Tucker, Leon
Order Denying Motion to Remove Detainer			
3	11/21/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	11/21/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	11/22/2024		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	11/27/2024		Yu, Kay
VOP Continued To Date Certain			
2	11/27/2024		Court of Common Pleas - Philadelphia County
Commitment			
Philadelphia Department of Prisons			
11/27/2024			
6	11/27/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	01/16/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			

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1	01/24/2025		Yu, Kay
Violation Penalties Imposed			
3	01/24/2025		Court of Common Pleas - Philadelphia County
Court Commitment State or County Correctional Institution Philadelphia Department of Prisons 01/24/2025			
1	06/03/2025		Defender Association of Philadelphia
Motion for Parole			
2	06/03/2025		Philadelphia County District Attorney's Office
Commonwealth Response to Motion for Parole			
1	06/04/2025		Hangley, Michele
Order Granting Motion for Parole			
2	06/04/2025		Hangley, Michele
Order Granting Parole			
1	06/25/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	06/26/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	07/14/2025	07/14/2025	DeFino-Nastasi, Rose
Order to Administratively Lift Bench Warrant			
3	07/14/2025		DeFino-Nastasi, Rose
Detainer Issued			
4	07/14/2025		Court of Common Pleas - Philadelphia County
Commitment			

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6	07/14/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
8	07/14/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	07/16/2025		Philadelphia County Adult Probation Unit
Gagnon 1 Summary Filed			
1	07/17/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
3	07/18/2025		Hangley, Michele
VOP Continued To Date Certain			
4	07/18/2025		Court of Common Pleas - Philadelphia County Feder, Eric
Commitment Philadelphia Department of Prisons 07/18/2025			
1	08/15/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
4	08/25/2025		Hangley, Michele
VOP Continued To Date Certain			
5	08/25/2025		Court of Common Pleas - Philadelphia County Feder, Eric
Commitment Philadelphia Department of Prisons 08/25/2025			

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3	08/26/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	09/05/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
2	09/05/2025		Yu, Kay
Order Granting Motion to Remove Detainer			
3	09/05/2025		Court of Common Pleas - Philadelphia County
Release of Prisoner Philadelphia Department of Prisons 09/05/2025			
4	09/09/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	09/30/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	10/03/2025		Yu, Kay
Violation Penalties Imposed			
3	10/03/2025		Yu, Kay
Order Granting Motion to Remove Detainer			
4	10/03/2025		Court of Common Pleas - Philadelphia County
Release of Prisoner Philadelphia Department of Prisons 10/03/2025			
4	10/06/2025		Court of Common Pleas - Philadelphia County
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1	11/18/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	12/29/2025		Philadelphia County Adult Probation Unit
Gagnon 1 Summary Filed			
1	12/30/2025		Court of Common Pleas - Philadelphia County Feder, Eric
Commitment Philadelphia Department of Prisons 12/30/2025			
2	12/31/2025		DeFino-Nastasi, Rose
Detainer Issued			
3	12/31/2025		Acavino, Joell
Order Denying Motion to Remove Detainer			
6	12/31/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	01/06/2026		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	01/09/2026		Yu, Kay
VOP Continued Until Further Notice			
2	01/09/2026		Court of Common Pleas - Philadelphia County
Commitment Philadelphia Department of Prisons 01/09/2026			
3	03/10/2026		Court of Common Pleas - Philadelphia County
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4	03/11/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	03/16/2026		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	03/18/2026		DeFino-Nastasi, Rose
VOP Continued To Date Certain			
5	03/18/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	03/25/2026		DeFino-Nastasi, Rose
Order Granting Motion to Revoke Parole			
4	03/25/2026		Court of Common Pleas - Philadelphia County DeFino-Nastasi, Rose
Commitment Philadelphia Department of Prisons 03/25/2026			
1	05/04/2026		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
3	05/19/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			